

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTON)**

Present:

Mr. Justice Md. Nazrul Islam Talukder

And

Mr. Justice Khizir Hayat

Criminal Miscellaneous Case No.16626 of 2010

Gaeshar Chandra Roy

..... Accused-petitioner.

-Versus-

The State and another

..... Opposite-parties.

Mr. Nitai Roy Chowdhury, Advocate

..... For the Accused-petitioner.

Mr. A.K.M. Amin Uddin, D.A.G with

Ms. Anna Khanom Koli, A.A.G and

Mr. Md. Shaifour Rahamn Siddique, A.A.G

..... For the State-opposite party.

Mr. Md. Khurshid Alam Khan, Senior Advocate

...For the Anti-Corruption Commission.

Heard on 03.11.2022 and Judgment on:03.11.2022.

Md. Nazrul Islam Talukder, J:

On an application under Section 561A of the Code of Criminal Procedure, this Rule, at the instance of the accused-petitioner, was issued calling upon the opposite-parties to show cause as to

why the impugned proceeding of Special Case No.16 of 2009 arising out of Ramna Model Police Station Case No.06 dated 05.01.2009 corresponding to ACC G.R No.02 of 2009 under Sections 26(2) and 27(1) of the Anti-Corruption Commission Act, 2004, now pending in the Court of learned Special Judge, Special Court No.3, Dhaka, should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

The prosecution case, in short, is that one S.M. Mafidul Islam, Deputy Director, Durnity Daman Commission (in short, DUDOK), Head Office, Dhaka lodged an ejahar against the accused-petitioner on 05.01.2009 under Sections 26(2)/27(1) of the Durnity Daman Commission Ain, 2004 before the Officer-in-Charge of Ramna Model Thana,

DMP, Dhaka alleging, inter-alia, that according to the notice sent by the Anti-Corruption Commission, on 20.08.2008, the accused petitioner declared his wealth statements worth of Tk.1,01,76,268/-; accordingly to the petitioner's statement the Anti-Corruption Commission inquired and investigated the case wherein the inquiring and investigating officer found that the petitioner suppressed some of his wealth and submitted false statements regarding his wealth and it was alleged that the inquiry officer found various types of wealth in the possession and custody of this accused-petitioner at a worth of Tk. 2,86,95,105/-, which is disproportionate to his known source of income and on the basis of such allegations, Ramna Model Police Station Case No.06, dated 05.01.09 was started. Hence, the F.I.R.

The Investigating Officer took up the case for investigation. During investigation, the Investigating Officer collected the materials on record, recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure and after investigation, the Investigating Officer submitted memo of evidence before the DUDOK. The DUDOK after perusing the memo of evidence and other materials on record accorded sanction under Section 32 of the Durnity Daman Commission Ain, 2004. The Investigating Officer after obtaining sanction from the Commission submitted charge-sheet along with sanction before the Chief Metropolitan Magistrate, Dhaka being Charge-sheet No.299 dated 05.07.2009 against the accused-petitioner under Sections 26(2)

and 27(1) of the Anti-Corruption Commission Act, 2004, on 05.07.2009.

After submission of charge-sheet, the case record was transmitted to the Court of Special Judge, Court No.3, Dhaka for trial, who took cognizance against the accused-petitioner under Sections 26(2)/27(1) of the Anti-Corruption Commission Act, 2004 and registered the same as Special Case No.16 of 2009.

It is stated that the accused-petitioner filed an application for discharge from the case under Section 241A of the Code of Criminal Procedure before the Special Judge, Court No.3, Dhaka. The Special Judge after hearing the parties rejected the said application for discharge vide order No.16 dated 04.02.2010.

At the trial, charge has been framed by the learned Special Judge, Court No.3, Dhaka against the accused-petitioner under Sections 26(2)/27(1) of the Durnity Daman Commission Ain, 2004 vide order No.16 dated 04.02.2010. The said charge was read over to the accused-petitioner in which he pleaded not guilty and claimed to be innocent.

Being aggrieved by the impugned proceeding, the accused-petitioner approached this court with an application under Section 561A of the Code of Criminal Procedure and obtained this Rule along with an order of stay of the impugned proceeding.

At the very outset, Mr. Nitai Roy Chowdhury, the learned Advocate for the accused-petitioner, submits that the accused-petitioner is innocent and he has committed no offence and he has falsely been

implicated in the instant case only out of political enmity and as such, the continuation of instant criminal proceeding against the accused-petitioner certainly tantamount to abuse of the process of court and law as such it is liable to be quashed.

He next submitted that there is no sanction of the case from the Commission as provided under section 32(1) of the Anti-Corruption Commission Act, 2004 read with Rule 15(1) of the ACC Rules, 2007 as such the continuation of instant criminal proceeding against the accused-petitioner certainly tantamount to abuse of the process of the court and law as such it should be quashed.

He then submits that the information filed the instant case in not complying with the provisions of the Anti-Corruption Commission Act and Rules as

per section 17(6) of Anti-Corruption Commission Rules, 2007 and no sanction of the case from the said Commission has been accorded and as such, continuation of instant criminal proceeding against the accused-petitioner certainly tantamount to abuse of the process of court and law as such it should be quashed.

He further submits that no prior sanction for lodging the case against the accused-petitioner was issued by the Commission in accordance with and in compliance with the mandatory provisions of law and, as such, the lodging of the case against the accused-petitioner by the informant is without sanction of law and is ex-facie illegal and as such, the impugned proceeding is an abuse of the process

of court and law and the same is liable to be quashed.

He additionally submits that no complaint ever been lodged by any person or quarter against the accused-petitioner under Rules 3 and 4 of the ACC Rules and the said case not being lodged by the Commission on the basis of any complaint, the lodging of the case against the accused-petitioner by the Commission is *mala-fide* and ex-facie illegal and as such, the impugned proceeding is an abuse of the process of court and law and the same is liable to be quashed.

He candidly submits that no approval for lodging of the FIR was issued by the Anti-Corruption Commission under Rule 15(2) of the ACC Rules and in such circumstances, the lodging

of the FIR by the informant against the accused-petitioner without any sanction of law is ex-facie illegal because under section 32 of the ACC Act read with Rule 15(2) of the ACC Rules, prior sanction of the Anti-Corruption Commission for lodging of a First Information Report against any person is mandatory; the Rule 15(7) of the ACC Rules lays down that the sanction must be accorded by the Commission in the format prescribed in Form-3 of the ACC Rules; since no prior sanction for lodging the case against the accused-petitioner was issued by the Commission in accordance with and in compliance with the mandatory provisions of law, the impugned proceeding is an abuse of the process of court and law and as such, the same is liable to be quashed.

He strenuously submits that the petitioner is innocent; he is not involved with any such allegations as made against him in the FIR; in fact, no case is disclosed against the accused-petitioner in the FIR; he has been incriminated by some vested quarters with a view to harassing and humiliating him and the initiation of such case is out of malice as such initiation and continuation of instant criminal proceeding against the accused-petitioner certainly tantamount to abuse of the process of court and law and as such it should be quashed.

He lastly submits that before lodging the First Information Report, no sanction was taken from the Commission though it is pre-condition and mandatory as per Rule 6 of the Anti-Corruption Commission Rules, 2007.

On the other hand Mr. Md. Khurshid Alam Khan, the learned Senior Advocate for the Anti-Corruption Commission, submits that the provisions laid down in Rule 7 of the Durnity Daman Commission Bidhimala, 2007 are not at all applicable here because the complaint was not made in pursuance of Rule 3, Chapter II of the ACC Rules, 2007; it was the intention of the legislature to bid a farewell to the well-known concept of criminal jurisprudence that a criminal complaint suffers from no law of limitation and that an alleged criminal act will never go untried and as such, considering the same, the Rule is liable to be discharged.

He next submits that the sanction as required under section 32(1) of the Durnity Daman Commission Ain, 2004 has been duly obtained in the present case and as such, question of

“mechanical sanction” or “no sanction” as alleged by the accused-petitioner does not, at all, arise; the new legislation of ACC Ain, 2004 has clearly provide “Form No.3” under Rule 15(7) of the ACC Rules, 2007 in order to accord sanction for prosecution where the Commission has or had no scope to assign any specific reason in support of its satisfaction; since the said “Form” is a part of the statute, there lies no opportunity to incorporate or import even a word in order to assign any reason of its satisfaction in support the prosecution case which was not available in the previous statute; moreover, the “working days” consumed by the investigating officer for completion of investigation, are within the prescribed period of limitation, as such, no mischief has been caused to the prosecution case in any manner whatsoever.

He then submits that the instant case deals with bundle of facts and arithmetical calculation which can be the subject matter of trial and question of quashment under section 561A of the Code of Criminal Procedure does not arise at all because, there is no scope to quash a proceeding where disputed questions of fact are involved and prima facie case is disclosed and as such, the petitioner cannot get any remedy under section 561A of the Code of Criminal Procedure; the Appellate Division in the case of Ali Akkas Vs Enayet Hossain, reported in 17 BLD(AD)44=2 BLC(AD) 16 wherein it was held that to bring a case within the purview of section 561A of the Code of Criminal Procedure for the purpose of quashing a proceeding, one of the following conditions must be fulfilled:

- (i) Interference even at an initial stage may be justified where the facts are so preposterous that even on admitted facts no case stands against the accused;
- (ii) Where the institution and continuation of the proceeding amounts to an abuse of the process of the Court;
- (iii) Where there is a legal bar against the initiation or continuation of the proceeding;
- (iv) In a case where the allegations in the FIR or the petition of complaint, even if taken at their face value and accepted in their entirety, do not constitute the offence alleged and
- (v) The allegations against the accused although constitute an offence alleged but there is either no legal evidence adduced in support of the case or the evidence adduced clearly or

manifestly fails to prove charge” and as such, considering the same, the Rule is liable to be discharged.

He lastly submits that in the case of Habibur Rahman Mollah vs the State reported in 62 DLR(AD) (2010)233 it has been held that whether the accused-petitioner has disproportionate wealth, he has concealed his known source of income, there is mis-joinder of charges and the trial of the accused-petitioner on facts alleged committed prior to the promulgation of Durnity Daman Commission Ain, 2004 constitute an offence under the Durnity Daman Commission Ain are disputed facts can only be decided on evidence at the trial; it has been further held that the provisions of the Code provide that the administration of criminal justice should be allowed to proceed in the usual manner without

interruption; if the High Court Division interferes with the case in the midst of the trial it will set up a wrong precedent by which instead of the cause of justice being advanced had really been stifled and as such, considering the same, the Rule is liable to be discharged.

Mr. A.K.M Amin Uddin, learned Deputy Attorney-General appearing for the State, has adopted submissions made by the learned Advocate for the Anti-Corruption Commission.

We have gone through the application under Section 561A of the Code of Criminal Procedure and perused the prosecution materials annexed thereto. We have heard the learned Advocate for the accused-petitioner, the learned Advocate for the Anti-Corruption Commission and Mr. A.K.M Amin Uddin, the learned Deputy Attorney-General for the

State at length and considered their submissions to the best of our wit and wisdom.

It appears from the FIR that the accused-petitioner acquired the properties in question by dishonest means, which are disproportionate to his known sources of income. It is alleged in the FIR that the accused-petitioner unlawfully obtained property worth of Tk.2,86,95,105/- which he did not disclose in his wealth statements. The investigation officer after holding investigation into the allegations having found prima-facie case submitted investigation report against the accused-petitioner under the aforesaid sections. Following the Investigation Report, the learned Special Judge framed charge against the accused-petitioner under Sections 26(2) and 27(1) of the Anti-Corruption Commission Act, 2004.

It is evident from the record that the accused-petitioner Goyeswar Chandra Roy submitted a false statement before Anti-Corruption Commission Authority and thus concealed the property worth Taka 2,86,95,105/-. It is further alleged that the accused received in total Tk.2.61 crore illegal toll from 2 contractors showing his influence as a top brass of the then ruling party. These matters appears to have manifested in the charge-sheet as well as other relevant documents embodied in the record which reveals positive inference as regards presence of sufficient ground to proceed with the case.

It is worthwhile to mention that the allegations that have been brought against the accused-petitioner are all disputed and highly complicated questions of fact which cannot be decided by this court invoking its jurisdiction under Section 561A

of the Code of Criminal Procedure. It is now well settled that the disputed and complicated questions of fact can only be decided by the learned trial judge on taking evidence from the witnesses of the respective parties. It is evident from the charge-sheet that sanction for proceeding the case was duly accorded by the Anti-Corruption Commission. Furthermore, the grounds that have been taken in the application have already been settled by different decisions by the apex court. It may be mentioned that there is no requirement for sanction for initiation of the proceeding and that sanction is required only in case of filing the charge-sheet. Both the sub-section (1) and sub-section (2) of section 32 envisages only one sanction, not two. Sub-section (1) does not spell out or even envisage filing of any fresh sanction when the sanction to prosecute has

already been filed along with the charge-sheet. Moreover, on going through a plethora of legal decisions taken in the cases of **Abdul Kader Chowdhury Vs. State, 28 DLR (AD) 38, Ali Akkas –Versus-Enayet Hossain, 17 BLD (AD) (1997) 44, Begum Khaleda Zia-Versus-the State and another, 70 DLR(AD)(2018)99**, we do not find any application of the principles with regard to quashing a proceeding in the instant case.

Considering the facts and circumstances of the case, the submissions advanced by the learned Advocates for the respective parties and the propositions of law settled by the Appellate Division, we do not find any merit in this Rule.

Accordingly, the Rule is discharged.

Consequently, the order of stay granted at the time of issuance of the Rule, stands vacated.

The learned Divisional Special Judge, Chattogram/the learned Special Judge as the case may be, is directed to proceed with the case in accordance with law and conclude the trial of the case as early as possible preferably within 1(one) year from the date of receipt of this judgment and order.

Let a copy of this judgment and order be communicated to the learned judge of the concerned court below and the Chairman, Anti-Corruption Commission, at once.

Khizir Hayat, J:

I agree.